



Notification Waiver Determination

Oscars Group – South Terrace Hotel in Bankstown, NSW

Acquisition	Bankstown Central Property Pty Ltd as trustee for the Bankstown Central Property Unit Trust and Oscars NSW Ops Pty Ltd (the Acquirers) applied for a notification waiver in respect of their proposed acquisition of the freehold land interest, buildings, licenses and business assets (both tangible and intangible) of the South Terrace Hotel in Bankstown, New South Wales (the South Terrace Hotel), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	8 July 2026

Parties to the Acquisition	The Acquirers are part of the Oscars Group, which owns and operates community, food & beverage, entertainment and accommodation venues across New South Wales, South Australia, Queensland and Victoria. The target, the South Terrace Hotel, is a community, food, beverage and entertainment venue located at 280 South Terrace, Bankstown NSW 2200. The parties both supply retail hospitality services including dining, entertainment, gaming and on-premises liquor services in the City of Canterbury Bankstown local council area.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the parties' combined share in the supply of dining, entertainment, gaming and on-premises liquor services at pub-style venues in the local area surrounding the South Terrace Hotel is low to moderate b. there are alternative pub-style venues that supply dining, entertainment, gaming, and liquor for on-site consumption in the local area surrounding the South Terrace Hotel and in the broader City of Canterbury Bankstown area.

	The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act